

		25. The proposed order and judgment should state that the judgment will be posted on the settlement administrator's website for at least 180 days. 26. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 27. Paragraph 9 should be revised to stated that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>a/so</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
15	Varela v. Florence Crittenton Services of Orange County, Inc. 2025-01462276	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$500,000 class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? Exhibit E to the Otkupman Declaration (ROA 42) states that only a "Proposed Settlement" was submitted to the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should state the estimated average, high and low individual class payments and the estimated average, high and low individual PAGA payments.

		3. Plaintiff should state her total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). 4. The Class Period and the PAGA Period need a specific end date to enable the court to evaluate the fairness and reasonableness of the settlement. See Settlement Agreement ¶¶ 1.12, 1.31, 8. 5. Paragraph 1.24, which states that PAGA payments will be calculated based on workweeks, is inconsistent with other portions of the settlement agreement, which state that PAGA payments will be calculated based on pay periods. Paragraph 1.24 should be revised. 6. The "Released Class Claims" provision in paragraph 1.39 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. 7. The "Released PAGA Claims" provision in paragraph 1.40 is overbroad and, as drafted, unclear. The PAGA release should be revised to make clear that it does not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. 8. The "Released Parties" provision in paragraph 1.41 of the settlement agreement is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "attorneys, insurers" and "affiliates." In addition, Florence Crittenton Community Support is neither a party to the case or the settlement. Why is that entity appropriately included in the release? 9. The "Response Deadline" provision in paragraph 1.43 should include disputes. 10. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel." 11. The second-to-last sentence in in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.3 of the settlement agreement and section 4(C) (last sentence) of the notice should also be revised accordingly. 12. The third sentence of paragraph 8 should be removed and the last sentence should be revised. The court will
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		not approve a settlement that permits defendant to shorten the Class Period and/or the PAGA Period. 13. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. 14. Plaintiff's counsel seeks costs not to exceed \$25,000. Plaintiff's counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included. 15. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 16. The parties (plaintiff and defendant) should state in declarations filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration(s) shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. <u>As to the notice:</u> 17. The notice should be revised consistent with the above. 18. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed. 19. The phrase "and PAGA" should be inserted after "CLASS ACTION" in the title of the notice and throughout the document, e.g., in the first sentence of the first paragraph on page 1. 20. The court prefers that the notice be accompanied by separate one-page exclusion, objection and dispute forms. The settlement agreement and the notice should be revised accordingly. 21. The word "already" should be removed from the first sentence of the fifth paragraph on page 1.
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		22. The following sentence at the bottom of page 1 should be removed: "You will be deemed to have carefully read and understood it." 23. The word "strong" should be removed from the first sentence of the second paragraph of section 1. 24. The word "experienced" should be removed from the second sentence of the first paragraph of section 2, and "an" before "experienced" should then be replaced with "a." 25. The word "lengthy" should be removed from the first paragraph of section 2. 26. The word "strongly" should be removed from the second paragraph of section 2. 27. The following sentence should be removed from section 3(B)(1): "To date, Class Counsel have worked and incurred expenses on the Action without payment." 28. The phrase "up to" before "\$40,000" in section 3(B)(4) should be removed. 29. Sections 3(F), 6 and 7 should state the methods of submitting exclusion and objection forms. 30. The third sentence of section 3(F) should be revised to state that a class member may submit a letter as an alternative to submitting the exclusion form. 31. The second sentence of the second paragraph of section 3(F) should be removed as part of it is redundant of other portions of the notice and another part does not accurately describe the release. 32. The discussion of the releases in sections 3(I) and 3(J) should not rephrase or restate the releases, which must, in any event, be revised as stated above. The class members' release and the aggrieved employees' release should each be stated once. 33. The phrase "and as set forth in Section 5.3 of this Agreement" should be removed from section 3(I), as the notice does have a section 5.3 and the notice is not "this Agreement." 34. All of the first paragraph of section 7 should be removed, other than the first sentence. 35. The third sentence of section 8 should be removed. 36. The notice should advise the aggrieved employees that they are bound by the terms of the PAGA release even if they do not cash their checks. 37. Section 9 should state that the settlement administrator will post all key documents on its website, including the
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		operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted for at least 180 days. 38. The first paragraph of the exclusion form should be removed. 39. The method of submitting the exclusion form stated on the form is inconsistent with the settlement agreement and should be revised. 40. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit. <u>As to the proposed order (ROA 37):</u> 41. The proposed order should be revised consistent with the above. 42. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. 43. The proposed order should state that the court preliminarily finds the settlement fair, reasonable and adequate, and in the best interests of the class members. 44. The proposed order should identify the class members and the aggrieved employees, including the class period and the PAGA period. 45. The proposed order should include a provision stating: "The court orders the parties, their counsel and the settlement administrator to carry out their duties and obligations in accordance with terms of the settlement agreement." 46. The proposed order should include a provision stating that the court retains jurisdiction pursuant to Civil Procedure Code section 664.6 to enforce the settlement. 47. The parties should propose a date for the final approval hearing. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>November 19, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be
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		filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
16	Zazueta v. A Manouselis, Inc. 2023-01324404	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$105,000 PAGA settlement. The court has the following questions and comments: 1. In the September 11, 2025 order (ROA 80), the court stated that the "Released Parties" provision in the settlement agreement was overbroad, as it included unrelated, ambiguous and/or unidentified third parties. In the March 19, 2026 order (ROA 94), the court stated that the "Released Parties" provision in the addendum to the settlement agreement remained overbroad, as it continued to include unrelated, ambiguous and/or unidentified third parties, such as "affiliated companies, agents, managing agents," "servants," "indirect" owners, and "insurance companies, alleged joint employers and attorneys." The parties have revised the "Released Parties" provision in the second addendum to the settlement agreement to include "attorneys from Musick, Peeler & Garrett LLP, attorneys from Clark Hill LLP, attorneys from Mooradian Law, APC and Tokio Marine HCC." Why are these law firms properly included in the release, and what consideration has each law firm provided for the release? 2. The notice letter should define the Released Parties. 3. A second copy of the proposed order and judgment should not be attached to the proposed order and judgment. ROA 109. The addendum attached to the proposed order and judgment as Exhibit B is not signed. The second addendum should be attached to the proposed order and judgment as an exhibit. The hearing on plaintiff's motion for approval is continued to <u>December 3, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be</u>